CalWORKs Program Guide: A. Employment Services Noncompliance and Sanc

COUNTY OF SAN DIEGO HEALTH & HUMAN SERVICES AGENCY - CALWORKS PROGRAM GUIDE

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Section 1

COUNTY OF SAN DIEGO HEALTH AND HUMAN SERVICES AGENCY
CALWORKS PROGRAM GUIDE ? SECTION 10-025: COMPLIANCE PROCESS
TITLE: A. WTW NONCOMPLIANCE, CAUSE DETERMINATION, AND SANCTIONS

Section 2

1. POLICY BACKGROUND & PURPOSE
This section establishes County HHSA procedures for addressing failure to participate in mandatory Welfare-to-Work (WTW) activities under CDSS MPP EAS 42-721. The compliance process ensures full due process, requiring the County to explore good cause and offer conciliation before imposing financial sanctions.

Section 3

2. DETAILED REGULATORY STANDARDS & SANCTION PROCESS
? Noncompliance Notice (NA 840): When an individual fails or refuses to participate without pre-established good cause, issue the Cause Determination Notice (NA 840) allowing 20 calendar days to establish good cause or request a conciliation appointment.
? Conciliation Period: A 20-calendar-day conciliation period begins immediately upon notice issuance. The caseworker and participant work together to resolve barriers and draft a compliance plan.
? Curing Noncompliance: A participant cures noncompliance by signing a compliance plan and agreeing to complete the assigned activity for up to 30 calendar days.
? I mposition of Financial Sanction: If the individual fails to respond, fails to establish good cause, or refuses to sign a compliance plan, a financial sanction is imposed. The adult’s portion of the cash grant is removed, reducing the family’s cash aid. The children’s benefits continue.
? Curing a Sanction: A sanction can be cured at any time. When the individual agrees to participate and completes a compliance plan, the sanction is removed and the adult’s grant is restored on the first of the following month.

Section 4

3. CASEWORKER OPERATING PROCEDURES & VERIFICATION CHECKLIST
? Pre-Sanction Outreach: Attempt home visits, phone calls, and outreach to re-engage the customer before issuing a formal sanction.
? Timely Notice of Action: Issue the 10-day Notice of Action prior to reducing the

grant amount.

? Restorative Action: Immediately process compliance documents when the participant agrees to cure.